



**PETITION TO
CHANGE NAME OF MINOR**
G. L. c. 210, § 12

Docket No.

**Massachusetts Trial Court
Probate and Family Court**

In the matter of:

Division

First Name

Middle Name

Last Name

(current legal name of minor child)

INFORMATION ABOUT THE MINOR CHILD

1. The petitioner, _____, is a minor.
First Name Middle Name Last Name

(print child's current legal name here)

2. The petition is presented on behalf of the Child by *(check all that apply)*: ☐ legal parent 1 ☐ legal parent 2
☐ legal parent 3 ☐ court-appointed guardian(s)

3. The Child's date of birth is: _____ The Child's current age is: _____
Date

4. The Child's current address:

(Address)

(Apt, Unit, No. etc.)

(City/Town)

(State)

(Zip)

☐ Check here if current address is a facility under the supervision of the Massachusetts Department of Youth Services.

FORM ALERT: The Child MUST reside (currently live) in the county where this petition is filed.

5. Has the Child ever legally changed their name prior to this petition? ☐ No ☐ Yes *If Yes, please complete the following:*

From: _____

To: _____

Reason: _____

FORM ALERT: A certified copy of the Child's birth certificate AND a certified copy of any prior name change must be filed with this petition.

☐ Check here if you would like all certified copies of documents filed with the court returned to you after review/processing.

INFORMATION ABOUT THE LEGAL PARENTS

6. The Child's legal parents (as listed on the Child's birth certificate) are:

a. Legal Parent 1: _____
First Name Middle Name Last Name

(Address)

(Apt, Unit, No. etc.)

(City/Town)

(State)

(Zip)

Primary Phone #: _____ Email Address: _____

b. Legal Parent 2: _____
First Name Middle Name Last Name

(Address)

(Apt, Unit, No. etc.)

(City/Town)

(State)

(Zip)

Primary Phone #: _____ Email Address: _____

c. Legal Parent 3: _____
First Name Middle Name Last Name

(Address)

(Apt, Unit, No. etc.)

(City/Town)

(State)

(Zip)

Primary Phone #: _____ Email Address: _____

FORM ALERT: If the address or whereabouts of any legal parent(s) is unknown you must file a Motion for Service by Alternate Means and Affidavit of Diligent Search (CJP 31) with a Military Affidavit (TC0002).

- ☐ Check here if only one parent is listed on the Child's birth certificate.
- ☐ Check here if any legal parent listed on the Child's birth certificate is deceased (*attach a copy of the death certificate(s)*).
- ☐ Check here if any legal parent listed on the Child's birth certificate has had their parental rights terminated in a prior court proceeding (*attach proof*).

INFORMATION ABOUT THE COURT- APPOINTED GUARDIAN (IF ANY)

7. Does the Child have a court-appointed temporary or permanent guardian? ☐ No ☐ Yes (*if yes, complete the following and attach proof unless already on file with this court*)

a. Guardian 1: _____
First Name Middle Name Last Name

(Address) (Apt, Unit, No. etc.) (City/Town) (State) (Zip)
Primary Phone #: _____ Email Address: _____

b. Co-Guardian 2: _____
First Name Middle Name Last Name

(Address) (Apt, Unit, No. etc.) (City/Town) (State) (Zip)
Primary Phone #: _____ Email Address: _____

FORM ALERT: If the address or whereabouts of the guardian(s) is unknown you must file a Motion for Service by Alternate Means and Affidavit of Diligent Search (CJP 31) and a Military Affidavit (TC0002).

INFORMATION ABOUT ASSENTS

Complete **ALL** of the following:

8. The Child who is a minor, 12 years of age or older, assents to the petition (*see notarized assent on this petition*)
☐ Not applicable. The Child is not 12 years of age or older.
9. ☐ Legal Parent 1 assents to the petition (*see notarized assent on this petition or an assent form filed with this petition*)
☐ Legal Parent 1 does not assent. Explain: _____
10. ☐ Legal Parent 2 assents to the petition (*see notarized assent on this petition or an assent form filed with this petition*)
☐ Legal Parent 2 does not assent. Explain: _____
11. ☐ Legal Parent 3 assents to the petition (*see notarized assent on this petition or an assent form filed with this petition*)
☐ Legal Parent 3 does not assent. Explain: _____
12. ☐ All court-appointed guardian(s) assent to the petition (*see notarized assent on this petition or an assent form filed with this petition*)
☐ All court-appointed guardian(s) do not assent. Explain: _____

INFORMATION ABOUT THE CHILD'S PROPOSED NEW NAME

13. It is in the best interests of the Child to change the Child's name to:

First Name Middle Name Last Name

14. A change of name is sought for the following reason:

AUTHORIZATION TO CONDUCT A CARI AND WMS CHECK

15. I/We authorize the Court to conduct a Court Activity Record Information (CARI) and Warrant Management System (WMS) check on any names used by the Child, if the Child is 12 years of age or older, by submitting the attached Court Activity Record Information and Warrant Management System Release Request Form (CJP 34).

OTHER REQUESTS (OPTIONAL)

16. If there is a hearing on this petition, I request an interpreter for *(check all that apply)*:

☐ the Child ☐ legal parent 1 ☐ legal parent 2 ☐ legal parent 3 ☐ court-appointed guardian(s)

Language(s): _____

17. ☐ The Child would like to request that court staff use these pronouns while they are at court: _____

IMPORTANT - PLEASE READ

If the Child, who is the subject of this petition is 12 years of age or older, the Child's written notarized assent must be obtained below **before filing this petition**. See Uniform Practice XXXV.

NOTARIZED SIGNATURE OF THE CHILD, 12 YEARS OF AGE OR OLDER

Date: _____ Sign here in the presence of a Notary Public → _____

Type or Print Name of the Child, 12 years of age or older

On this _____ day of _____, 20____, in the state of _____, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory

(Name of Document Signer)

evidence of identification, which were _____, to be the person who signed the preceding or attached document in my presence, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(seal) Notary Public Signature _____ My commission expires: _____

Print Name _____ State of Commission _____

NOTARIZED SIGNATURE OF LEGAL PARENT(S)

Date: _____ Sign here in the presence of a Notary Public → _____

Type or Print Name, indicate if legal parent 1, 2, or 3

On this _____ day of _____, 20____, in the state of _____, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory

(Name of Document Signer)

evidence of identification, which were _____, to be the person who signed the preceding or attached document in my presence, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(seal) Notary Public Signature _____ My commission expires: _____

Print Name _____ State of Commission _____

NOTARIZED SIGNATURE OF LEGAL PARENT(S)

Date: _____ Sign here in the presence of a Notary Public → _____

Type or Print Name, indicate if legal parent 1, 2, or 3

On this _____ day of _____, 20____, in the state of _____, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory

(Name of Document Signer)

evidence of identification, which were _____, to be the person who signed the preceding or attached document in my presence, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(seal) Notary Public Signature _____ My commission expires: _____

Print Name _____ State of Commission _____

Date: _____ Sign here in the presence of a Notary Public → _____

Type or Print Name, indicate if legal parent 1, 2, or 3

On this _____ day of _____, 20____, in the state of _____, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory

(Name of Document Signer)

evidence of identification, which were _____, to be the person who signed the preceding or attached document in my presence, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(seal) Notary Public Signature _____ My commission expires: _____

Print Name _____ State of Commission _____

NOTARIZED SIGNATURE OF COURT- APPOINTED GUARDIAN(S), IF ANY

Date: _____ Sign here in the presence of a Notary Public → _____

Type or Print Name of guardian

On this _____ day of _____, 20____, in the state of _____, before me, the undersigned notary public, personally appeared _____, proved to me through satisfactory

(Name of Document Signer)

evidence of identification, which were _____, to be the person who signed the preceding or attached document in my presence, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of (his) (her) knowledge and belief.

(seal) Notary Public Signature _____ My commission expires: _____

Print Name _____ State of Commission _____

Information on Attorney for Petitioner, if any

Signature of Attorney

(Print name)

(Address)

(Apt, Unit, No. etc.)

(City/Town)

(State)

(Zip)

Primary Phone #: _____

B.B.O. # _____

Email: _____